

An Act

ENROLLED SENATE
BILL NO. 171

By: Gollihare and Stanley of
the Senate

and

Hilbert of the House

An Act relating to state government; amending Section 1, Chapter 11, O.S.L. 2023 (74 O.S. Supp. 2025, Section 465), which relates to the commissioning of peace officers; directing the Commissioner of Public Safety to commission peace officers in conjunction with the President Pro Tempore of the Oklahoma State Senate or the Speaker of the Oklahoma House of Representatives; providing jurisdiction of commissioned officers; and providing an effective date.

SUBJECT: State government

BE IT ENACTED BY THE PEOPLE OF THE STATE OF OKLAHOMA:

SECTION 1. AMENDATORY Section 1, Chapter 11, O.S.L. 2023 (74 O.S. Supp. 2025, Section 465), is amended to read as follows:

Section 465. A. The Commissioner of Public Safety ~~may~~ shall, in conjunction with either the President Pro Tempore of the Oklahoma State Senate or the Speaker of the Oklahoma House of Representatives, commission as peace officers ~~one member~~ no more than two members of the security team of the Oklahoma State Senate and ~~one member~~ no more than two members of the security team of the Oklahoma House of Representatives, provided such commissioned officers must obtain and maintain certification as full-time peace

officers pursuant to Section 3311 of Title 70 of the Oklahoma Statutes.

B. Any such commissioned officers are hereby declared to be peace officers of the State of Oklahoma and shall be so deemed and taken in all courts having jurisdiction of offenses against the laws of the state. Such commissioned officers shall have the powers and authority now and hereafter vested by law in other peace officers, including the power of arrest, enforcement of the criminal laws of this state, search and seizure, and the authority for serving or execution of civil process.

C. ~~The jurisdiction of such commissioned officers shall include all powers of arrest granted to the sergeant at arms as set forth in Section 773 of Title 74 of the Oklahoma Statutes, but the jurisdiction of such commissioned officers shall otherwise be limited to the Capitol building, grounds, and parking lots described in Sections 15.1 and 15.3 of Title 73 of the Oklahoma Statutes~~ be pursuant to Sections 99 and 99a of Title 21 of the Oklahoma Statutes, and shall include all powers of arrest granted to the sergeant at arms as set forth in Section 773 of this title, but such jurisdiction shall be effective only while in the performance of official duties.

D. Any commission issued by the Commissioner pursuant to this section shall be subject to all requirements set forth by the Commissioner, and the Commissioner may limit the power and scope of the commission. Further, the Commissioner may suspend or revoke the commission for any reason, and the commission shall be deemed terminated upon the commissioned officer's separation of service or reassignment to another position outside the security team of their respective bodies.

E. Such commissioned officers shall not be deemed to be officers, agents, or employees of the Department of Public Safety, and no action or omission by such commissioned officers shall be deemed to be an action or omission of the Department of Public Safety.

SECTION 2. This act shall become effective November 1, 2026.

Passed the Senate the 5th day of May, 2026.

Presiding Officer of the Senate

Passed the House of Representatives the 29th day of April, 2026.

Presiding Officer of the House
of Representatives

OFFICE OF THE GOVERNOR

Received by the Office of the Governor this _____

day of _____, 20_____, at _____ o'clock _____ M.

By: _____

Approved by the Governor of the State of Oklahoma this _____

day of _____, 20_____, at _____ o'clock _____ M.

Governor of the State of Oklahoma

OFFICE OF THE SECRETARY OF STATE

Received by the Office of the Secretary of State this _____

day of _____, 20_____, at _____ o'clock _____ M.

By: _____